

Tarang Agrawal v. Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. & 2 Others

Allahabad High Court · Division Bench · 24 July 2023 · 2023:AHC:146618-DB · Writ - C No. 18900 of 2023 · **Writ dismissed as infructuous after the final assessment was withdrawn**

HEADNOTE

Tarang Agrawal challenged the order dated 3 February 2023 of respondent no. 3 and sought reconnection, contending that a provisional assessment notice of 4 June 2021 had been followed by that order and by disconnection from 30 January 2023 without any final assessment, contrary to the U.P. Electricity Supply Code, 2005. He relied on *Rituraj v. State of U.P.* (Writ-C No. 35477 of 2016). On 7 July 2023 the Court called for an explanation of the disconnection. On 24 July 2023 the licensee placed instructions of the Executive Engineer, Electricity Distribution Division-Second, Mirzapur, that in compliance the final assessment had been withdrawn and a notice dated 19 July 2023 issued for a reply within 15 days. Accepting that the cause of filing the writ no longer survived, the Division Bench dismissed it as infructuous. It did not decide whether the order or the disconnection was unlawful, whether a final assessment had existed, or the prayer for reconnection, and it did not apply *Rituraj*.

FACTUAL SUMMARY

Tarang Agrawal filed Writ-C No. 18900 of 2023 against the Managing Director, Purvanchal Vidyut Vitran Nigam Ltd. and two others, challenging the letter/order dated 3 February 2023 of respondent no. 3 and seeking reconnection. He said a provisional assessment notice had been issued on 4 June 2021, yet without a final assessment that order was passed and the connection discontinued from 30 January 2023. He relied on *Rituraj v. State of U.P.* (Writ-C No. 35477 of 2016, decided 14 December 2017) and on the U.P. Electricity Supply Code, 2005.

On 7 July 2023 the Court asked the licensee to explain the disconnection without a final assessment, and passed the case over; it was passed over again on 19 July 2023. On 24 July 2023 counsel produced instructions dated 19 July 2023 from the Executive Engineer, Electricity Distribution Division-Second, Purvanchal Electricity Distribution Nigam Limited, Mirzapur, stating that in compliance the final assessment had been withdrawn and a notice issued on 19 July 2023 for a reply within 15 days. The writ was then dismissed as infructuous.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::assessment

Writ against an order and disconnection said to precede any final assessment dismissed as infructuous once the licensee withdraws the final assessment and issues a reply notice

QUESTION

Does a writ challenging an order and a disconnection, said to have been made after a provisional assessment notice and without a final assessment, survive once the licensee withdraws the final assessment and issues a notice inviting a reply?

HOLDING

The writ does not survive, and is dismissed as infructuous, where the licensee places instructions that, in compliance with the Court's call for an explanation, the final assessment has been withdrawn and a notice issued for a reply within 15 days, and counsel submits that the cause of filing no longer survives. The Court did not decide whether the order of 3.2.2023 or the disconnection from 30.1.2023, after the provisional assessment notice of 4.6.2021, was unlawful under the Supply Code, 2005, and it did not order reconnection.

¶ 3-4

QUALIFIER

Accepted on the licensee's instructions of 19.7.2023. No merits finding on the assessment or the disconnection.

FLAG Thin procedural record. The source PDF concatenates three Division Bench orders of the same coram: 7.7.2023 (paras 1-5; respondent's counsel named Sri Sushil Kumar Pandey; passed over to 19.7.2023), 19.7.2023 (unnumbered pass-over to 24.7.2023; counsel named Sri Sushil Kumar Sharma), and 24.7.2023 (Neutral Citation No. 2023:AHC:146618-DB, paras 1-4; operative dismissal). Pins are to the 24.7.2023 order, which quotes the 7.7.2023 order in paragraph 2. The Court cited no numbered clause. The petitioner invoked the Electricity Supply Code, 2005 generally, and Rituraj. Catalog hits UP-2005::7.7, 7.7.1 and 7.7.4 are not in the text. The order does not say whether the assessment was for theft (Clause 8.1) or unauthorised use (Clause 6.8). The petitioner said there was no final assessment; the instructions said the final assessment had been withdrawn. That conflict was not resolved. No Indian Kanoon doc-id is in the fingerprint.

PRINCIPLE TAGS

procedural-listing-no-construction The writ attacking the 3.2.2023 order and the 30.1.2023 disconnection as made without a final assessment after the 4.6.2021 provisional notice was dismissed as infructuous once the licensee withdrew the final assessment and issued a 15-day reply notice. The Supply Code point, and the petitioner's reliance on Rituraj, were not decided. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ORDER DATED 3.2.2023 AND THE DISCONNECTION FROM 30.1.2023, AFTER THE PROVISIONAL ASSESSMENT NOTICE OF 4.6.2021 AND WITHOUT A FINAL ASSESSMENT, WERE UNSUSTAINABLE UNDER THE U.P. ELECTRICITY SUPPLY CODE, 2005

The petitioner's ground, with reliance on Rituraj. The Court cited no clause number and did not distinguish Clause 6.8 from Clause 8.1. Overtaken by dismissal as infructuous. ¶ 2-4

NOT DECIDED — WHETHER A FINAL ASSESSMENT HAD IN FACT BEEN MADE BEFORE IT WAS SAID TO HAVE BEEN WITHDRAWN

The petitioner said the 3.2.2023 order was passed without a final assessment. The 19.7.2023 instructions said the final assessment had been withdrawn. The Court did not resolve that. ¶ 2-3

NOT DECIDED — RECONNECTION OF THE SUPPLY DISCONTINUED FROM 30.1.2023

Sought in the writ. The dismissal as infructuous did not direct restoration. ¶ 2, 4

NOT DECIDED — THE PETITIONER'S REPLY TO THE NOTICE DATED 19.7.2023, AND ANY ASSESSMENT TO FOLLOW

Recorded only as the licensee's statement that a 15-day reply notice had been issued. No direction on the reply or on a fresh final assessment. ¶ 3-4

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Rituraj v. State of U.P. and 3 Others</i> Writ C No. 35477 of 2016, decided 14.12.2017 Allahabad High Court	The petitioner relied on this decision, with the Electricity Supply Code, 2005, for the submission that the order of 3.2.2023 and the disconnection from 30.1.2023, without a final assessment after the provisional assessment notice of 4.6.2021, were unsustainable. The judgment does not recite what Rituraj held. The Court did not apply it; the writ was dismissed as infructuous.		Petitioner	Referred

